Chapter-wise Detailed Notes — Fundamental Rights and Fundamental Duties

Indian Government & Politics · Unit 1 · Chapter Fundamental Rights and Fundamental Duties

Assam University · BA FYUGP / NEP 2020 · Semester 1

Chapter Study Notes

Learning focus

Fundamental Rights are contained in Part III, Articles 12–35. They protect important freedoms and provide constitutional limits on public power.

1. Rights include equality, freedoms, protection against exploitation, freedom of religion, cultural and educational rights, and constitutional remedies, subject to the text and limitations of each provision.

2. Article 32 empowers the Supreme Court to enforce Fundamental Rights; High Courts have writ jurisdiction under Article 226 with a broader scope.

3. Fundamental Duties are listed in Article 51A in Part IVA. They express civic responsibilities but are not generally enforceable in the same manner as Fundamental Rights.

4. Rights and duties should not be treated as simple substitutes: rights constrain public power, while duties articulate responsibilities and civic commitments.

Revision checklist

■ Can I define the key concept in my own words?

■ Can I explain its main features and distinguish it from related concepts?

■ Can I support an argument with a relevant example, thinker or constitutional provision?

■ Can I discuss at least one limitation or counterargument?